

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUOR044464: PENNYMAC LOAN SERVICES, LLC vs GLORIA BARBA,
TRUSTEE OF THE GLORIA BARBA REVOCABLE TRUST DATED 12/21/2015, et al.
08/26/2026 in Department 42
Motion for Order of Entry of Judgment pursuant to Stipulation**

Motion: Plaintiff's Motion for Entry of Judgment Pursuant to Stipulation (*unopposed*)

Tentative Ruling:

The motion is denied without prejudice.

Grounds:

On October 13, 2025, Plaintiff, and Defendants Barba and MERS entered into a Stipulation resolving the dispute. Then, on October 30, 2025, Plaintiff filed an Amendment to correct the name of Defendant MERS, and the following language: "AS BENEFICIARY, AS NOMINEE FOR" and "ITS SUCCESSORS AND ASSIGNS." The Stipulation and a proposed judgment were filed with the Court on November 6, 2025. See Matayron Decl. ¶ 5.

The Court issued a rejection of the proposed order on December 19, 2025 on grounds that:

"One defendant name does not match the complaint. It does not appear defendants are actually stipulating to the judgment; proposed judgment does not address actual claims or state which parties have judgment in their favor"

After submitting the Notice of Conditional Settlement, the proposed judgment was resubmitted. Then on March 17, 2026, the Court issued a second rejection notice, stating:

"The judgment does not match the stipulation. Additionally, a Notice of Settlement of Entire Case was Filed on 3/3/2026."

Discussion:

Code of Civil Procedure section 664.6, subdivision (a) states as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

"Section 664.6 empowers a court to enforce a settlement agreement by way of a summary procedure if certain requirements are satisfied. [Citations]. In order to take advantage of the statute's expedited procedure, a party must first establish the agreement at issue was set forth 'in a writing signed by the parties' [citation] or was made orally before the court." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 304.) "Because of its summary nature, strict

**2025CUOR044464: PENNYMAC LOAN SERVICES, LLC vs GLORIA BARBA,
TRUSTEE OF THE GLORIA BARBA REVOCABLE TRUST DATED 12/21/2015, et al.**

compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement.” (*Critzer v. Enos* (2010) 187 Cal.App.4th 1242, 1256.)

Here, the Stipulation was signed by Plaintiff’s counsel, and Defendants Barba and MERs and filed with the Court. Under the Stipulation, the parties agreed as follows:

1. Stipulating Defendants do not and will not oppose the entry of judgment and declaration that the Reconveyance is hereby declared void, cancelled, and of no force or effect and with no adverse effect whatsoever on the Subject Deed of Trust.
2. Stipulating Defendants do not and will not oppose the entry of judgment and declaration that Plaintiff is the holder of the Subject Note and is the current owner of the indebtedness secured by the Subject Deed of Trust, which is a valid encumbrance against the entirety of the fee interest held in the Property as of February 16, 2024, the original recording date of the Subject Deed of Trust.
3. Stipulating Defendants do not and will not oppose the entry of judgment and declaration that the Note holder secured by the Subject Deed of Trust holds a valid and enforceable first priority lien encumbering the entirety of the fee interest held in the Property as described in Paragraph “A” above, senior and superior to the interests of Defendant, if any, and/or any third party’s interest in the Property as of February 16, 2024 and Defendant’s interests, if any, or any third party’s interest, if any, are subject and junior to the Note holder’s interest in the Property, pursuant to the Subject Deed of Trust as of February 16, 2024.
4. Stipulating Defendants do not and will not oppose the entry of judgment and declaration that the Reconveyance did not reconvey the Subject Deed of Trust and thereby did not release the Subject Deed of Trust from the public records as an encumbrance against the Property.
5. The Reconveyance was recorded as a result of mistake or inadvertence and is hereby cancelled.
6. Stipulating Defendants do not and will not oppose the entry of a judgment that confirms and declares that Plaintiff is authorized to record a judgment cancelling the Reconveyance.
7. Plaintiff and Stipulating Defendants will not seek attorney’s fees or any other monetary recovery from each other.
8. Plaintiff may incorporate the terms of this stipulation into a comprehensive final judgment of declaratory relief and cancellation of instrument consistent with the relief prayed for in the Complaint and in this Stipulation.
9. This Stipulation may be executed by facsimile signature, and any such facsimile signature by any party hereto shall be deemed to be an original signature and shall be binding on such party to the same extent as if such facsimile signature were an original signature.

The Court has rejected the proposed judgment submitted by Plaintiff on two occasions because the language in the proposed judgment contains errors¹ and does not match the language in the

¹ The proposed judgment states “This Judgment in rem is granted **and** favor of Plaintiff.” Should state “**in** favor of Plaintiff.” Also, in ¶3 of the proposed order, it states that the 2024 DOT “constitutes a valid and enforceable lien encumbering the Property as described in Paragraph 1, above in a first priority position.” The placement of the comma adds unnecessary confusion, and it appears that it should instead be placed after the word “above.”

**2025CUOR044464: PENNYMAC LOAN SERVICES, LLC vs GLORIA BARBA,
TRUSTEE OF THE GLORIA BARBA REVOCABLE TRUST DATED 12/21/2015, et al.**

Stipulation. The most recent proposed order is still insufficient because it does not match the Stipulation.

For example, while the Stipulation clearly states that the reconveyance is void, cancelled and of no force or effect and with no adverse effect on the subject DOT, the proposed judgment does not contain any such language. Instead, the proposed judgment merely states that the Reconveyance was “mistakenly recorded...because the Subject Loan secured by the Subject Deed of Trust has not been paid in full.” ¶5. The proposed judgment language does not match the language in the Stipulation at ¶3 either; nothing about Plaintiff’s interest being senior and superior to the interests of the Defendants, which are subject to and junior to Plaintiff’s interest in the property. Likewise, the language in the Stipulation at ¶4 was not included in the proposed judgment – that the Reconveyance did not reconvey the Subject DOT from the public records as an encumbrance. ¶5 of the Stipulation mentions “inadvertence” and that the Reconveyance is “cancelled” while the proposed judgment uses neither term. There is no mention in the proposed judgment that all parties agreed not to seek attorney fees of other monetary recovery. Stipulation at ¶7.